

SOFTWARE DEVELOPMENT AND SUPPORT AGREEMENT

This Software Development and Support Agreement (the "Agreement") is entered into as of October 1, 2026 (the "Effective Date") by and between Brightwave Retail Ltd., a Delaware corporation ("Customer"), and Orbit Software Partners LLC, a Texas limited liability company ("Supplier").

1. SERVICES

1.1 Supplier shall design, build and deliver the customer portal described in Schedule A (the "Deliverables") and provide the support services described in Section 5. 1.2 Supplier shall deliver the first working release of the Deliverables within ninety (90) days after the Effective Date. 1.3 Supplier shall provide Customer with a written progress report on the fifth (5th) business day of each calendar month.

2. TERM AND RENEWAL

2.1 This Agreement begins on the Effective Date and continues for an initial term of twelve (12) months. 2.2 The Agreement renews automatically for successive renewal terms of twelve (12) months each unless either party gives written notice of non-renewal at least sixty (60) days before the end of the then-current term. 2.3 Supplier may increase the fees for a renewal term by no more than five percent (5%), provided that Supplier gives Customer written notice of the increase at least ninety (90) days before the renewal term starts.

3. FEES AND PAYMENT

3.1 Customer shall pay Supplier a fixed development fee of one hundred twenty thousand US dollars (USD 120,000), invoiced in three equal instalments: on the Effective Date, on delivery of the first working release, and on final acceptance. 3.2 Customer shall pay each undisputed invoice within thirty (30) days after receipt of the invoice. 3.3 Customer shall notify Supplier of any disputed amount in writing within ten (10) days after receipt of the invoice. 3.4 Late payments accrue interest at one percent (1%) per month.

4. ACCEPTANCE

4.1 Customer shall review each Deliverable and either accept it or give written reasons for rejection within fifteen (15) days after delivery. 4.2 A Deliverable that is not rejected within that period is deemed accepted. 4.3 Supplier shall correct rejected Deliverables within ten (10) business days.

5. SUPPORT AND SERVICE LEVELS

5.1 Supplier shall keep the portal available at least 99.5% of each calendar month, excluding scheduled maintenance announced at least forty-eight (48) hours in advance. 5.2 Supplier shall respond to a critical incident within two (2) hours and resolve it within one (1) business day. 5.3 If monthly availability falls below 99.5%, Customer is entitled to a service credit equal to ten percent (10%) of that month's support fee, up to a maximum of thirty percent (30%).

6. CONFIDENTIALITY

6.1 Each party shall keep the other party's confidential information secret and use it only to perform this Agreement. 6.2 These obligations survive for three (3) years after termination. 6.3 Upon termination, each party shall return or destroy the other party's confidential information within thirty (30) days.

7. DATA PROTECTION

7.1 Supplier shall process personal data only on Customer's documented instructions and shall store Customer data within the European Economic Area. 7.2 Supplier shall notify Customer of any personal data breach without undue delay and in any event within seventy-two (72) hours after becoming aware of it. 7.3 Supplier shall maintain cyber insurance of at least two million US dollars (USD 2,000,000) throughout the term.

8. INTELLECTUAL PROPERTY

8.1 Customer owns all rights in the Deliverables upon payment in full. 8.2 Supplier retains ownership of its pre-existing tools and grants Customer a perpetual, non-exclusive licence to use them as part of the Deliverables.

9. LIABILITY AND INDEMNITY

9.1 Each party's total liability under this Agreement is limited to the fees paid or payable in the twelve (12) months before the claim, except for breach of confidentiality or data protection obligations, which are capped at three (3) times those fees. 9.2 Supplier shall indemnify Customer against third-party claims that the Deliverables infringe intellectual property rights.

10. TERMINATION

10.1 Either party may terminate this Agreement for convenience by giving ninety (90) days' written notice. 10.2 Either party may terminate immediately by written notice if the other party materially breaches this Agreement and fails to cure the breach within thirty (30) days after written notice. 10.3 On termination, Customer shall pay for services performed up to the termination date.

11. GOVERNING LAW

This Agreement is governed by the laws of the State of Delaware, without regard to conflict-of-law rules. The parties submit to the exclusive jurisdiction of the courts located in Wilmington, Delaware.

12. NOTICES

Notices must be in writing and sent by courier or e-mail with confirmation of receipt to the addresses set out on the signature page.

Signed for Brightwave Retail Ltd.: _____ Signed for Orbit Software Partners
LLC: _____